Outlook

Fw: DSPS compliance challenge and potential solution

From Jensen, Wayne <jensenw@flc.losrios.edu>
Date Tue 7/28/2026 1:26 PM
To Fowler, Caleb <FowlerC@flc.losrios.edu>

From: Pimentel, Artemio <Pimentel@flc.losrios.edu>
Sent: Monday, July 27, 2026 9:41 AM
To: Jensen, Wayne <jensenw@flc.losrios.edu>; McCormac, Gregory <McCormG@flc.losrios.edu>
Cc: Baumgartner Lee, Kaitlyn <Kaitlyn.BaumgartnerLee@flc.losrios.edu>; McKechnie, Dan <McKechD@flc.losrios.edu>
Subject: Re: DSPS compliance challenge and potential solution

Hello Wayne,
Thank you for your email and for outlining the history of our discussions. I apologize for the delayed response, as I was out last week.

I want to reaffirm that the college will follow the established space repurposing process, as previously discussed. I know Greg responded to your email and clarified the intention regarding Stephanie's class. I apologize for any miscommunication or for giving the impression that a final decision had already been made. That simply is not the case.

We remain committed to following the established process while also ensuring that we address the DSPS compliance requirements and funding timeline in a timely manner.

Thank you for helping ensure that this process moves forward with appropriate Academic Senate participation.
A-

Dr. Art Pimentel | President |
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From: Jensen, Wayne <jensenw@flc.losrios.edu>
Date: Tuesday, July 21, 2026 at 12:02 PM
To: McCormac, Gregory <McCormG@flc.losrios.edu>
Cc: Pimentel, Artemio <Pimentel@flc.losrios.edu>, Baumgartner Lee, Kaitlyn <Kaitlyn.BaumgartnerLee@flc.losrios.edu>, McKechnie, Dan <McKechD@flc.losrios.edu>
Subject: Re: DSPS compliance challenge and potential solution

Hi Folsom Lake College Administration Executive Members,

I wanted to reach out regarding the need to bring our DSPS proctoring services into federal

compliance. This message is to ensure that we are all on the same page regarding the path that we will be taking to ensure that we identify the space that needs to be repurposed to fulfill this goal. I believe a brief history of the conversations that have taken place regarding this topic would be helpful.

- In my last meeting of the academic year with President Pimentel back on May 6, 2026, President Pimentel shared with me that FLC received a substantial amount of money to renovate space and purchase equipment to bring our DSPS proctoring into compliance. It was noted that the money needs to be spent soon and that we would need to come to a decision early in the Fall semester in order to complete the project in the timeframe needed. President Pimentel shared that administration felt that the ITV classroom in FL1 might be the perfect space due to its proximity to the Center for Excellence and the low use of the room but was open to other ideas. It was presented to me, as the Academic Senate President, as a need to get it on the Senate's radar.
- As President Pimentel and I met on June 24th, President Pimentel followed up on the need to expand and enhance the space for DSPS Proctoring. He reiterated that this change is being mandated as we are out of compliance and that there is money, specifically earmarked for bringing our DSPS proctoring into compliance, that must be spent soon. He mentioned that the desired space is to take over the old ITV classroom. I asked about classes being taught in that room and President Pimentel shared that there has only been one class scheduled in that room. They found that a classroom in FL5 has the wiring needed to move the ITV equipment to, if ITV offerings are still of interest. He expressed hope that the Senate would be alright with the remodeling of the adjacent space, but that he is open to hear other suggestions of where a DSPS proctoring center can be built. President Pimentel shared that there is specific equipment they need regardless of where the proctoring center is located, so they are going to start ordering that equipment, as there is a need to start spending the money granted for compliance.
- The next day, I communicated this to the rest of the Senate Exec and the feeling was that this could be the right space, but that we should go through established process to allow faculty and staff to provide insights that others might not be aware of in order to ensure that the best decision is made for the college. I shared this with President Pimentel via email and got a response back from saying that he understood and "would absolutely follow the established space repurposing process." The email is attached.
- I followed up in a subsequent meeting with President Pimentel, that was in the morning of July 13th. In that meeting we talked again about following the repurposing process and the need to ensure that this happened in a timely manner due to the spending timeline of the funds received being so tight. I spoke briefly with Dan afterwards in his office ensuring that he understood the desire to follow established processes for the repurposing of space. He agreed. Dan mentioned that the equipment in the ITV classroom needs to be updated, and they can do that update in another room to ensure that they meet the needs of the faculty member(s) who teach in that room. I committed to ensure that Caleb Fowler, as the BFPC Faculty Chair, was aware and could help ensure that the process was run in a timely manner. As we met, President Pimentel did tell me that Greg and Kaitlyn were working on an email regarding the need. That email is below. I appreciated the detail of the need, as it was the first time the compliance requirements were documented, and I knew this would be helpful in the discussions taking place in the repurposing process. However, the content of the email suggests heavily that a decision has already been made, therefore circumventing the established process.

Yesterday, I received a forwarded email from Stephanie Karas, Administration of Justice Department Chair. She received an email from Carlos about needing to move one of her department member's classes from the ITV classroom to a location in FL2, which is a hyflex classroom, as "FL1-110 has been assigned to DSPS for test proctoring." This email is deeply concerning as it gives the appearance that the decision has already been made, and actions are being taken, without going through the established process.

I am writing to ensure that we are all have a common understanding that we will be following the Space Repurposing Process, as established by this College through Participatory Governance processes, to ensure collegewide participation in identifying the space that is to be repurposed to expand our DSPS test proctoring services to be in compliance with federal mandates. This would be in alliance with previous verbal and email conversations surrounding this topic since it was initially brought to the Academic Senate's awareness in May of 2026.

Your confirmation that we will be following the Space Repurposing Process is needed and will be deeply appreciated.

Thanks so much,

Wayne Jensen
Academic Senate President
Folsom Lake College

From: McCormac, Gregory <McCormG@flc.losrios.edu>
Sent: Monday, July 13, 2026 4:36 PM
To: Jensen, Wayne <jensenw@flc.losrios.edu>
Cc: Pimentel, Artemio <Pimentel@flc.losrios.edu>; Baumgartner Lee, Kaitlyn <Kaitlyn.BaumgartnerLee@flc.losrios.edu>; McKechnie, Dan <McKechD@flc.losrios.edu>
Subject: DSPS compliance challenge and potential solution

Hi Wayne,
As we have discussed, FLC's DSPS program has been out of compliance with state regulations for not providing dedicated test proctoring space for students with approved accommodation needs. There has been increased scrutiny regarding the college's compliance, and failure to address these issues would not only negatively impact our ability to appropriately serve our students but also risk loss of funding.

Kaitlyn and I have been collaborating to identify a solution that brings the college into compliance while minimizing the impact on existing campus operations. The option that best meets these objectives is the conversion of FL1-109 into a dedicated DSPS testing and proctoring center. This solution will support compliance with the Americans with Disabilities Act (ADA) and California Title 5 DSPS regulations while ensuring the timely delivery of approved accommodations, protecting student confidentiality, and promoting student retention, persistence, and success.

To meet state and federal requirements, the space will need to provide:

- Sound-insulated, reduced-distraction, and private testing rooms.
- Accessible workstations and adaptive furniture for students with a range of disabilities.
- Computers equipped with assistive technology software and adaptive peripherals.
- Secure testing environments that protect academic integrity while maintaining student privacy.
- Reliable technology infrastructure, including internet connectivity, electrical access, printing/scanning capabilities, and lockable storage for testing materials.
- Appropriate proctoring technology and monitoring capabilities, including line-of-sight testing stations, a proctor workstation with presentation technology, and secure observation methods.

From an operational standpoint, converting FL1-109 would have minimal impact on instructional operations. Since Fall 2023, only one faculty member has regularly been

scheduled in the room. While a small number of faculty have also used the space to record lectures, there are other campus locations capable of supporting those activities.

In addition, discussions are already underway regarding replacement of the technology currently housed in FL1-109. Rather than simply replicating the existing equipment, we have an opportunity to invest in technology that better serves broader instructional needs across campus. I have asked the instructional deans to work with their departments—particularly faculty with significant online teaching responsibilities or specialized technology needs—to identify priorities. Those discussions may ultimately lead to enhanced technology being installed in FL3-173 or another appropriate instructional space.

Given the compliance requirements and the need to provide appropriate services for our students, we believe converting FL1-109 into a dedicated DSPS testing and proctoring center, along with the necessary funding for sound insulation, accessibility modifications, assistive technology, furnishings, and testing equipment makes sense. This approach would provide a sustainable, compliant solution while minimizing disruption to instructional operations.

The College plans to notify the Academic Senate since we are converting this space. To meet compliance expectations, we will need to establish a timeline for the transition and implementation so the space can be operational as quickly as possible. If the Senate can address this issue at the initial fall meeting that would be appreciated. I welcome the opportunity to discuss next steps and answer any questions you may have.

Respectfully,

Greg

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